



File No.: EXP202310910

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 18, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against MOURO PRODUCCIONES, S.R.L. (hereinafter, the respondent), through the Agreement transcribed below:

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File No.: EXP202310910

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on June 23, 2023. The complaint is directed against MOURO PRODUCCIONES, S.R.L. with NIF B39529847. The reasons for the complaint are as follows:

The complainant states that, to attend concerts managed by the respondent entities accompanied by minors, it is requested that authorizations be completed by the mothers, fathers, or guardians of the minors attending such events, for which a copy of the ID of the person granting the authorization is required, as well as personal information of both the authorizing person and the minors attending the event. It also points out that the authorization documents that collect the aforementioned data do not adequately inform regarding data protection, and there is no evidence that they have a Data Protection Officer.

The complainant provides authorizations for participation in concerts in which data is collected.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint was forwarded to MOURO PRODUCCIONES, S.R.L. for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on August 3, 2023, as evidenced by the acknowledgment of receipt in the file.

On September 1, 2023, this Agency received a response letter stating the following:

- The events organized by Mouro Producciones have their corresponding Privacy Policy and process personal data in accordance with the requirements set forth in data protection regulations, although it is true that there was an error on their part in uploading the informative clauses on the corresponding event websites, which resulted in the publication of outdated clauses with references to repealed regulations.
- Regarding the reason for requesting that the accompanying person of the minors provide a copy of the ID, it should be noted that it is necessary to carry out a proper identification of the person before authorizing access to the venue. This is necessary to verify their age to ensure that they can accompany the minors in their charge.
- The ID of the minors is requested as it is necessary to verify the age of the attendees at the event according to the current regulations on Public Shows and Recreational Activities in Cantabria, as minors have certain prohibitions and specific attendance requirements for such events.
- Mouro Producciones is not in one of the mandatory cases for the designation of a DPO according to the requirements of the GDPR.

THIRD: On September 23, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, the entity MOURO PRODUCCIONES, S.R.L. is a small company established in 2002, with a turnover of 4,992,744 euros

in 2022.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each

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The control authority and according to the provisions established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, there is evidence of the processing of personal data by MOURO PRODUCCIONES, S.R.L. in its business activity, as established in Article 4.2 of the GDPR:

"‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of making available, alignment or combination, restriction, erasure or destruction;"

MOURO PRODUCCIONES, S.R.L. carries out this activity in its capacity as the data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR:

"‘data controller’ or ‘controller’: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States."

III

Breach of Obligation

The known facts could constitute an infringement attributable to Mouro Producciones, regulated in Article 5.1(c) of the GDPR and another infringement of Article 13 of the GDPR.

III

Article 5.1(c) of the GDPR

Article 5 of the GDPR "Principles relating to processing" refers to the principle of data minimization in letter (c) of its paragraph 1 in the following terms:

"Personal data shall be:

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c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

This article highlights that personal data must be "adequate, relevant, and limited to the necessity" for which they were collected, so that if the intended objective can be achieved without excessive data

processing, that is how it should be done.

In turn, Recital 39 of the GDPR indicates that: "Personal data should only be processed if the purpose of the processing cannot reasonably be fulfilled by other means." Therefore, only data that is "adequate, relevant, and not excessive in relation to the purpose for which it is obtained or processed" shall be processed.

The categories of data selected for processing must be strictly necessary to achieve the stated objective, and the data controller must strictly limit the collection of data to that information which is directly related to the specific purpose being pursued.

In this case, the company requests that the "document for access by minors under 16 years of age" be completed by parents, guardians, or legal representatives in order to allow the entry of minors to concerts managed by it. In addition to this completed authorization, they require the presentation of a photocopy of the ID of the parent or guardian who authorizes, which will be retained by the company. In the response to the transfer of the complaint, the company states that the reason for requesting that the accompanying adult of the minors provide a copy of the ID is that it is necessary to carry out a proper identification of the person before authorizing access to the venue, in compliance with current regulations.

Article 40 "Protection of Children and Adolescents" of Law 3/2017, of April 5, on Public Shows and Recreational Activities of Cantabria establishes, in its paragraph 2:

2. The following limitations on access and presence in public establishments and portable or removable facilities where public shows and recreational activities are held, regarding minors under eighteen years of age, are established:

a) Their entry and presence in nightclubs, discotheques, macro-discotheques, dance halls, pubs, bars, and similar establishments is generally prohibited, with the following exceptions whose content will be developed by regulation:

1. That these establishments have authorization for sessions for minors, in which entry and presence of individuals over fourteen years and under eighteen will be allowed, in accordance with Article 24 of the Cantabria Law 5/1997, of October 6, on Prevention, Assistance, and Social Inclusion in matters of drug dependence.

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2. That the activity to be carried out in party halls, dance halls, pubs, nightclubs, and similar establishments is compatible with the moral and physical integrity of minors, while it lasts and provided that they are accompanied by a responsible adult when they are under sixteen years of age.

And, in its section 6:

6. The owners of public establishments or portable or removable facilities, as well as those who organize public shows or recreational activities, may require, directly or through personnel in their service, the presentation of the national identity document or equivalent document as a means of verifying the age of the attending public. They must prevent access and, if necessary, evict, directly or through personnel in their service, those who do not document their age or do not meet the age requirement as established in this law.

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it can be understood that the collection of a photocopy of the client's identity document with all the information contained in that document is a processing of personal data contrary to the principle of "data minimization," regulated in Article 5.1.c) of the GDPR.

IV

Classification and qualification of the infringement

If confirmed, the aforementioned infringement of Article 5.1.c) of the GDPR could constitute the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; In this regard, the LOPDGDD, in its Article 71, establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law."

For the purposes of the limitation period, Article 72 of the LOPDGDD indicates:

Article 72. Very serious infringements.

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"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

V

Article 13 of the GDPR

Article 13 of the GDPR stipulates the following:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of the controller's representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent processing of data:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal

data;

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the personal data and is informed of the possible consequences of not providing such data;

f) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic applied, as well as the importance and expected consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

In this case, in the "document for access by minors under 16 years of age," regarding the basic information on data protection, it is outdated and refers to Organic Law 15/1999 of December 13, on the Protection of Personal Data.

This document does not refer to the processing that will be carried out on the data obtained through the copy of the ID card nor to the retention period of the same.

Insufficient data from the company is provided to exercise the rights of the data subjects established in the GDPR, specifically, the right established in Article 17 "right to erasure."

For all these reasons, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that Mouro Producciones may have processed the personal data of the complainant without adhering to the stipulations of Article 13 of the GDPR, as previously transcribed.

VI

Typification and qualification of the infringement of Article 13 of the GDPR

If confirmed, the aforementioned infringement of Article 13 of the GDPR could constitute the commission of the infringements typified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount: a) (...)

a) the rights of the data subjects under Articles 12 to 22;" (...)"

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In this regard, the LOPDGDD, in its Article 71 establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year limitation period for substantial violations of the articles mentioned therein, particularly the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law.

VII

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;

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h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or the processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have previously been ordered against the controller or the processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Regarding item k) of Article 83(2) of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83(2)(k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continuous nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In this case, in light of the possible infringement of Articles 5.1(c) and 13 of the GDPR, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83(1) of the GDPR. Thus, the condition of the respondent as a small business, with a turnover of €4,992,744 in the year 2022, is considered as a preliminary factor. In accordance with the indicated provisions, based on the evidence currently available regarding the initiation of sanctioning proceedings and without prejudice to the outcome of the instruction of the procedure, for the purpose of determining the amount of the sanctions to be imposed in this case, it is considered appropriate to graduate the sanctions according to the following criteria established by the transcribed provisions:

In an initial assessment, the following graduation criteria are considered concurrent as aggravating factors:

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Art. 5.1(c)

Article 83.2(g) of the GDPR: The categories of personal data affected by the infringement. This is because the content included in the identity document is a particularly sensitive data, the processing of which may lead to identity theft or fraud issues, and contains data that is not necessary for the purpose for which it was processed, as mere on-site verification of age may suffice.

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Art. 13 GDPR:

Article 83.2(a) of the GDPR: Nature, severity, and duration of the infringement:

In fulfilling its legal obligations, the respondent must act with the diligence that the circumstances of the case require, and it cannot be understood that this is the case when the rights of the affected parties regarding the data processing to be carried out are not properly informed. In this regard, it is necessary to refer to the Judgment of the Court of Justice of the European Union, of December 5, 2023, in case C-807/21 (Deutsche Wohnen), which states:

“76 In this regard, it should also be specified, concerning the question of whether an infringement has been committed intentionally or negligently and, therefore, may be sanctioned with an administrative fine under Article 83 of the GDPR, that a data controller may be sanctioned for behavior falling within the scope of the GDPR when it could not ignore the infringing nature of its conduct, whether or not it was aware of infringing the provisions of the GDPR (see, by analogy, the judgments of June 18, 2013, Schenker & Co. and others, C 681/11, EU:C:2013:404, paragraph 37 and cited case law; of March 25, 2021, Lundbeck/Commission, C 591/16 P, EU:C:2021:243, paragraph 156, and of March 25, 2021, Arrow Group and Arrow Generics/Commission, C 601/16 P, EU:C:2021:244, paragraph 97).” (the underlining is ours).

Considering the factors presented, the initial assessment of the fine for the infringement of Article 5.1(c) of the GDPR is €13,000 (thirteen thousand euros) and for the infringement of Article 13 of the GDPR is €7,000 (seven thousand euros), without prejudice to what results from the instruction of the procedure.

VIII

Adoption of measures

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If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in article 83.2 of the GDPR.

In such a case, in the resolution that is adopted, the present authority may require the responsible party to, within one month:

- Include in the “document for access by minors under 16 years of age” updated information regarding data protection, removing the reference to Organic Law 15/1999 of December 13, on the Protection of Personal Data.
- Adjust their informative clause to what is established in the data protection regulations.
- Remove from the documents for access by minors: “This document is invalid without a photocopy of the ID of the parent/guardian who signs it.”

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST:

TO INITIATE
SANCTIONING
PROCEEDINGS

against MOURO PRODUCCIONES, S.R.L., with NIF B39529847, for the alleged infringement of articles 5.1 c) and 13 of the GDPR, both classified in article 83.5 of the GDPR.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of the present sanctioning procedure.

FOURTH: THAT for the purposes provided in article 64.2 b) of the LPACAP, the sanction that may correspond would be: without prejudice to what results from the instruction.

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- For the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of said regulation, an administrative fine of €13,000.00 (THIRTEEN THOUSAND EUROS);

- For the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of said regulation, an administrative fine of €7,000.00 (SEVEN THOUSAND EUROS).

The above amounts to a total of €20,000.00 (TWENTY THOUSAND EUROS).

FIFTH: NOTIFY this agreement to MOURO PRODUCCIONES, S.R.L., with NIF B39529847, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number indicated in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the submission of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €16,000.00, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €16,000.00, and its payment will imply the termination of the procedure,

without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one applicable for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €12,000.00.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (€16,000.00 or €12,000.00), it must make the payment by depositing it into account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

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Furthermore, you must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount paid.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will result in its expiration and, consequently, the filing of actions; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be carried out exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On April 27, 2024, the respondent has proceeded to pay the fine in the amount of 12,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: The Initiation Agreement transcribed above indicated that, if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is warranted.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when a pecuniary sanction and another non-pecuniary sanction can be imposed but the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: DECLARE the termination of the procedure EXP202310910, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: ORDER MOURO PRODUCCIONES, S.R.L. to notify the Agency of the adoption of the measures described in the legal grounds of the Initiation Agreement transcribed in this resolution, within 1 month from the date this resolution becomes final and enforceable.

THIRD: NOTIFY this resolution to MOURO PRODUCCIONES, S.R.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the

fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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